

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT**

v.

**THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT**

**RESPONDENT, THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY'S
BRIEF IN OPPOSITION TO COMPLAINANT, PORT ELIZABETH & TERMINAL
WAREHOUSES CORP.'S MOTION TO COMPEL DISCOVERY**

Of Counsel and on the Brief:
Juan M. Barragan
Jonathan Smith

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Procedural History & Statement of Relevant Facts

On November 1, 2009, Respondent, The Port Authority of New York and New Jersey (the “Port Authority”), and Complainant, Port Elizabeth Terminal & Warehouse (“PETW”), entered into a lease agreement designated as Lease No.: LPN-297 (the “PETW Agreement”). *See* Certification of Juan M. Barragan (“Barragan Cert.”) at Ex. A. Pursuant to the PETW Agreement, the Port Authority, as lessor, let to PETW, as lessee, certain premises in Port Newark, which included building 201 and building 202. Pursuant to the PETW Agreement, the letting of building 201 and building 202 commenced on November 1, 2009 with a termination date of October 31, 2019, unless terminated sooner pursuant to the terms of the PETW Agreement. *See* Barragan Cert. at Ex. A, p. 3.

Section 41 of the PETW Agreement titled, Additional Termination Rights/Recapture Rights, gave the Port Authority and PETW the right to terminate the letting under the PETW Agreement as to buildings 201 and 202, among other buildings, without cause, effective at any time from and after October 31, 2015, on one year’s prior written notice to the other party. *See* Barragan Cert. at Ex. A, p. 61-62.

On April 19, 2016, the Port Authority served upon PETW, a Notice of Termination pursuant to section 41 of the PETW Agreement (the “Notice of Termination”). *See* Barragan Cert. at Ex. B. In the Notice of Termination, the Port Authority advised PETW that it was exercising its rights to terminate the letting of buildings 201 and 202 of effective May 1, 2017, with the last day of beneficial occupancy being April 30, 2017. *See* Barragan Cert. at Ex. B.

As PETW had not vacated either building 201 or 202, on March 31, 2017, representatives from the Port Authority’s Ports Department met with attorneys from the Law Department to discuss whether to file suit against PETW to evict them from these buildings. *See* Barragan Cert.

at Ex. C. The subject of the March 31, 2017 meeting was “LPN-297 PETW litigation vs negotiation.” *See* Barragan Cert. at Ex. C.

On May 4, 2017, the Port Authority commenced a landlord/tenant action against PETW in the Superior Court of New Jersey, Essex County, Law Division, Special Civil Part, Landlord/Tenant, seeking a judgment of possession for buildings 201 and 202. *See* Barragan Cert. at Ex. D. On July 21, 2017, four days before the trial date of the landlord/tenant action, PETW filed a complaint with the Federal Maritime Commission (“FMC” or “Commission”). On July 25, 2017, the parties appeared before the Hon. Dennis F. Carey, III, P.J.Cv., for the trial of the landlord/tenant eviction action. Same was adjourned to July 26, 2017, in order for the trial court to consider the merits of PETW’s order to show cause to stay the eviction action pending resolution of the FMC proceeding.

On July 26, 2017, the trial court denied PETW’s order to show cause. On that date, PETW made an oral motion to transfer the case to the Law Division, Civil Part, in order to file a counterclaim against the Port Authority. The trial court denied PETW’s oral motion to transfer the action to the Law Division, Civil Part. On July 26, 2017, Judge Carey presided over the landlord/tenant eviction bench trial. After listening to the testimony of the Port Authority’s witness and considering the evidenced presented, the trial court found that as a matter of law, the Port Authority complied with the provisions of the PETW Agreement and as a result, entered a judgment of possession in favor of the Port Authority; the court noted that it suspected that PETW’s filing of the complaint with the FMC was a ploy to delay the eviction process. PETW proceeded to file an emergent application with the Appellate Division for a stay. On August 7, 2017, the Appellate Division entered a decision and order denying PETW’s application for a stay and affirming the trial court’s decision and findings.

In the FMC Complaint, PETW first claims that the Port Authority gave undue or unreasonable preference or advantage to other marine terminal operators and has imposed an undue or unreasonable prejudice or disadvantage upon PETW. PETW also claims that that the Port Authority unreasonably refused to deal or negotiate with it.

On November 6, 2017, PETW served two discovery deficiency letters upon the Port Authority. *See* Certification of Donald A. Burke dated November 14, 2017 (“Burke Cert.”) at Ex. C and D. In one deficiency letter, PETW’s counsel claimed deficiencies to all of the Port Authority’s responses – a total of 29 – to PETW’s first request for production of documents. *See* Burke Cert. at Ex. D. In the other letter, PETW’s counsel claimed deficiencies to 46 of the 50 answers to interrogatories provided by the Port Authority. *See* Burke Cert. at Ex. C.

On November 13, 2017, the Port Authority served its responses to PETW’s claimed deficiencies, additional non-privileged relevant documents, and the privilege log. *See* Barragan Cert. at Ex. E. Same were received by PETW’s attorneys, Donald F. Burke and Paul M. Donovan on November 14, 2017 at 12:37 pm and 9:57 am, respectively; this is prior to the time that PETW filed the instant motion. *See* Barragan Cert. at Ex. F. On November 14, 2017, the Port Authority requested that PETW withdraw its motion. *See* Barragan Cert. at Ex. G. Rather than withdrawing its motion, PETW proceeded to file what purports to be a supplement to its motion to compel.

Argument

Point I

PETW’s motion to compel discovery should be denied on the ground that it is moot because PETW’s attorneys received the Port Authority’s responses to PETW’s claimed deficiencies, additional non-privileged documents, and the privilege log before this motion was filed.

In the instant matter, PETW’s filed a motion seeking a copy of the privilege log and responses to the information sought and documents identified in the deficiency letters. However,

the Port Authority served its responses to PETW's claimed discovery deficiencies, the privilege log, and 2,527 pages of additional documents on Monday November 13, 2017. *See* Barragan Cert. at Ex. E. Same were received by PETW's attorneys prior to the time they filed the instant motion and is evidenced by FedEx's proof of delivery. *See* Barragan Cert. at Ex. F.

In its November 20, 2017 supplement to its motion to compel, PETW counsel claims that the disc that the Port Authority provided with the additional documents was blank. This is the first time that PETW's counsel is making this claim, despite having the disc for almost a week. In addition, this is highly unlikely, given that the undersigned personally verified that the PDF files were copied on the discs before they were overnighted to PETW's attorneys.

In sum, it is respectfully requested that Your Honor deny PETW's motion to compel on the ground that it is moot. It is also respectfully requested that Your Honor not consider any of the arguments contained in PETW's November 20, 2017 supplement to its motion to compel because there is no rule that allows for a party to file a supplement to its motion before opposition is filed.

Point II

PETW has not met its burden of showing that the documents sought, which the Port Authority did not produce, are relevant to the present matter.

"The party moving to compel discovery has the burden of proving that the opposing party's answers were incomplete." *Guantanamo Cigar Co. v. Corporacion Habanos, S.A.*, 263 F.R.D. 1, 7 (D.D.C. 2009) (citing *Equal Rights Ctr. v. Post Props., Inc.*, 246 F.R.D. 29, 32 (D.D.C. 2007)). "Once a relevancy objection has been raised, the party seeking discovery must demonstrate that the information sought to be compelled is discoverable." *Haynes v. Navy Fed. Credit Union*, 286 F.R.D. 33, 36 (D.D.C. 2012) (citing *Meijer, Inc. v. Warner Chilcott Holdings Co., III, Ltd.*, 245 F.R.D. 26, 30 (D.D.C. 2007)).

In proceedings before the FMC, “[i]t is fundamental that the scope of discovery is not limitless.” *Am. President Lines, Ltd. v. Cyrus Mines Corp. & Cyprus Minerals Co.*, FMC Docket No. 91-27, 1994 WL 33488, at *12 (F.M.C. Jan. 31, 1994). Although parties may obtain discovery regarding any non-privileged matter that is relevant to any party’s claim or defense, the presiding officer may limit the frequency or extent of discovery otherwise allowed by these rules if the presiding officer determines that: “(A) The discovery sought is unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive; (B) The party seeking discovery has had ample opportunity to obtain the information by discovery in the action; or (C) The burden or expense of the proposed discovery outweighs its likely benefit, considering the needs of the proceeding, the amount in controversy, the parties’ resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues.” 46 C.F.R. § 502.141(e)(2)(ii).

In the instant matter, PETW’s interrogatories and document production requests seek documents of prior litigations between the Port Authority and other Marine Terminal Operators, which are overly broad and not relevant to the present matter. For instance, in document request No. 15, PETW seeks all records in, including pleadings, discovery exchanged, deposition transcripts, motions, supporting briefs, orders, opinions, and stipulations, relating to any suit or action from 2000 to the present by Maher Terminals, American Stevedoring, American Warehousing, CARGO, and Foreign Auto Preparation Services, including their respective parents and subsidiaries. These documents requests are wholly irrelevant to this case and will not lead to the discovery of any admissible evidence because they will not show any instances where the Port Authority unreasonably refused to deal or negotiate with PETW or that the Port Authority gave undue or unreasonable preference or advantage to other marine terminal operators.

Documents relevant to PETW's claim that the Port Authority refused to deal or negotiate would include emails and correspondence between the parties, and internal Port Authority communications. These documents have been produced. Documents relevant to PETW's claim that the Port Authority gave undue or unreasonable preference to other marine terminal operators would include the leases of the other tenants occupying Added Parcels, the PNCT lease, and emails and correspondence concerning the negotiation of the PNCT lease. These documents have likewise been produced.

In document request No. 16, PETW seeks all discovery exchanged, deposition transcripts, motions, supporting briefs, orders, opinions, and stipulations, relating to any suit or action from 2000 to the present by or on behalf of the Port Authority against a tenant seeking eviction or back rent. Contrary to PETW's contention, documents responsive to this request were produced by the Port Authority and included the actions filed against PETW and Export Transport Co.

Document request No. 17, which seeks records regarding tenants in arrears from 2000 to present is likewise irrelevant because the Port Authority did not file suit against and evict PETW from buildings 201 and 202 due to PETW's arrears. In fact, as of this date, the Port Authority has not taken any legal action against PETW to collect on the amounts it owes in rents, which presently exceed \$3 million.

Unlike the Port Authority, PETW did not provide any documents or emails of communications between PETW employees in its responses to the Port Authority's discovery demands. In fact, with the exception of the lease agreements and pleadings that PETW included in its initial responses, it did not include any correspondence, documents, or emails dated prior to July 18, 2016. As such, PETW's motion to compel production of documents should be denied

because the Port Authority has produced all documents that are relevant and unprivileged in this matter.

Point III

The documents contained in the Port Authority's privilege log are not subject to disclosure because they are protected by the deliberative process privilege, the attorney-client privilege and/or the attorney work-product doctrine.

During the course of discovery, documents can be protected from disclosure by the deliberative process privilege, the attorney-client privilege, and/or the attorney work-product doctrine.

The deliberative process covers “documents reflecting advisory opinions, recommendations and deliberations comprising part of a process by which governmental decisions and policies are formulated.” *Dep’t of Interior v. Klamath Water Users Protective Ass’n*, 532 U.S. 1, 8 (2001) (quoting *N. L. R. B. v. Sears, Roebuck & Co.*, 421 U.S. 132, 150 (1975) (internal quotation marks omitted)). The deliberative process privilege “allows the government to withhold documents and other materials that would reveal advisory opinions, recommendations and deliberations comprising part of a process by which governmental decisions and policies are formulated.” *In re Sealed Case*, 121 F.3d 729, 737 (D.C. Cir. 1997) (quoting *Carl Zeiss Stiftung v. V.E.B. Carl Zeiss, Jena*, 40 F.R.D. 318, 324 (D.D.C. 1966), *aff’d*, 384 F.2d 979 (D.C. Cir. 1967).

The work-product doctrine, which is contained in Fed. R. Civ. Pro. 26(b)(3), exempts from discovery “documents and tangible things that are prepared in anticipation of litigation.” Fed. R. Civ. P. 26(b)(3)(A). “The formulation of the work-product rule . . . is that documents should be deemed prepared in anticipation of litigation, and thus within the scope of the Rule, if in light of the nature of the document and the factual situation in the particular case, the document can fairly be said to have been prepared or obtained because of the prospect of litigation.” *United States v.*

Adlman, 134 F.3d 1194, 1202 (2d Cir. 1998) (internal citations and quotation marks omitted). “Unlike the attorney-client privilege, the work product doctrine does not require that the documents be prepared at the behest of counsel, only that they be prepared because of the prospect of litigation.” *Gucci Am., Inc. v. Guess?, Inc.*, 271 F.R.D. 58, 74 (S.D.N.Y. 2010).

“The work product protection is broader than the attorney-client privilege in that it is not restricted solely to confidential communications between an attorney and client.” *F.T.C. v. Boehringer Ingelheim Pharm., Inc.*, 778 F.3d 142, 149 (D.C. Cir. 2015) (citing *In re Sealed Case*, 676 F.2d 793, 808-09 (D.C. Cir. 1982)). “It is narrower, however, insofar as the doctrine protects only work performed in anticipation of litigation or for trial.” *Boehringer Ingelheim Pharm., Inc.*, 778 F.3d at 149. However, “a document prepared as work product for one lawsuit will retain its protected status even in subsequent, unrelated litigation.” *Id.*; see *F.T.C. v. Grolier Inc.*, 462 U.S. 19, 28 (1983) (holding that the attorney work-product doctrine applies to litigation other than that anticipated if the litigation).

“Additionally, although the doctrine is known as the attorney work-product doctrine, work product created by non-attorneys can also be protected if it is so intertwined with the legal analysis as to warrant protection.” *United States v. ISS Marine Servs., Inc.*, 905 F. Supp. 2d 121, 134 (D.D.C. 2012) (quoting *United States v. Deloitte LLP*, 610 F.3d 129, 139 (D.C. Cir. 2010) (internal quotation marks omitted)). In sum, “[t]he work product privilege does not depend on whether the thoughts and opinions were communicated orally or in writing, but on whether they were prepared in anticipation of litigation.” *Deloitte LLP*, 610 F.3d at 136.

The attorney-client privilege “is one of the oldest recognized privileges for confidential communications.” *Swidler & Berlin v. United States*, 524 U.S. 399, 403 (1998). “Communications made by and to non-attorneys serving as agents of attorneys in internal

investigations are routinely protected by the attorney-client privilege.” *In re Kellogg Brown & Root, Inc.*, 756 F.3d 754, 758 (D.C. Cir. 2014). “Furthermore, the privilege protects from disclosure communications among corporate employees that reflect advice rendered by counsel to the corporation.” *Bank Brussels Lambert v. Credit Lyonnais (Suisse) S.A.*, 160 F.R.D. 437, 442 (S.D.N.Y. 1995).

In the instant matter, the attorney work-product doctrine applies as of March 31, 2017 because on this date, the Port Authority’s Law Department met with representatives from the Ports to discuss filing suit against PETW. *See* Barragan Cert. at Ex. C. This is evidenced by the meeting’s subject of “LPN-297 PETW litigation vs negotiation.” *See* Barragan Dec. at Ex. C. It is without consequence that the litigation being contemplated at the time is different from the present action because it is well-settled that “a document prepared as work product for one lawsuit will retain its protected status even in subsequent, unrelated litigation.” *See Boehringer Ingelheim Pharm., Inc.*, 778 F.3d at 149; *Grolier Inc.*, 462 U.S. at 28.

As such, all the communications between the attorneys and the Ports’ representatives and between the Ports representatives, involving PETW are protected from disclosure by the attorney work-product doctrine and/or the attorney-client privilege.

In its November 20, 2017 supplement, PETW claims that the attorney work-product and attorney-client privilege are inapplicable because these privileges are being raised in a substantial number of documents in which neither the authors or recipients are attorneys. However, this argument is without merit because it is well-settled that the attorney-client and work-product privileges protect from disclosure communications among non-attorneys. *See Bank Brussels Lambert*, 160 F.R.D. at 442; *Guess?, Inc.*, 271 F.R.D. at 74; *ISS Marine Servs., Inc.*, 905 F. Supp. 2d at 134. Moreover, the earliest communication that is marked in the privilege log as being

exempt from disclosure by the attorney work-product privilege is dated April 1, 2017, which is after the meeting of March 31, 2017. *See* Barragan Cert. at Ex. C. As such, these communications are not subject to disclosure.

PETW also claims that the deliberative process privilege is inapplicable because the decision-making process itself is the subject of litigation. However, PETW has not cited a single decision in support of this argument. Moreover, many of the documents that PETW claims are protected by the deliberative process privilege are also protected from disclosure by the attorney-client and/or the attorney work product privilege. In the event Your Honor is inclined to grant PETW's motion, the Port Authority respectfully requests an in-camera inspection of the documents listed in the privilege log for a determination as to whether they are subject for disclosure.

Conclusion

For the foregoing reasons, it is respectfully requested that PETW's motion be denied in its entirety.

PORT AUTHORITY LAW DEPARTMENT
Attorneys for The Port Authority of New
York and New Jersey

By: 

Juan M. Barragan

Dated: November 21, 2017

BEFORE THE
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Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT

AFFIDAVIT OF SERVICE

Tyler L. Hinton, being duly sworn, deposes and says:

That I am a Law Intern in The Port Authority of New York and New Jersey Law Department, am over the age of eighteen (18) years, am not a party to this action and have an office address at 4 World Trade Center, 150 Greenwich Street, New York, New York.

That on the 21st day of November 2017, I served the annexed **THE PORT AUTHORITY'S OPPOSITION TO PETW'S MOTION TO COMPEL DISCOVERY** upon:

Law Offices of Donald F. Burke
45 Gale Road
Brick, New Jersey 08723
Attn: Donald F. Burke, Esq.

LaRoe, Winn, Moerman & Donovan
1250 Connecticut Avenue North West, Suite 200
Washington, DC 20036
Attn: Paul M. Donovan, Esq.

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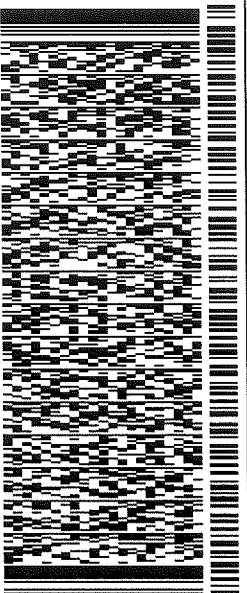
Sworn to before me this
21st day of November 2017.



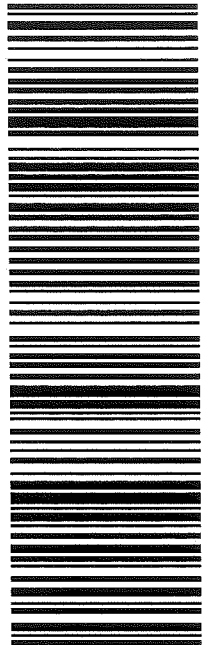
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Natalie D. Russell
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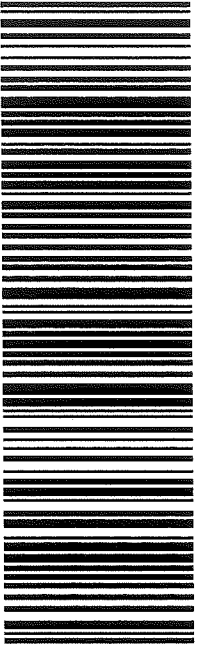
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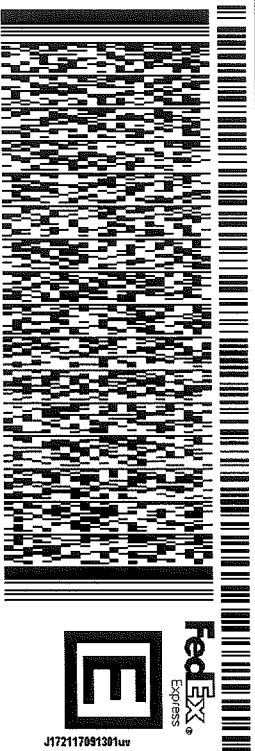
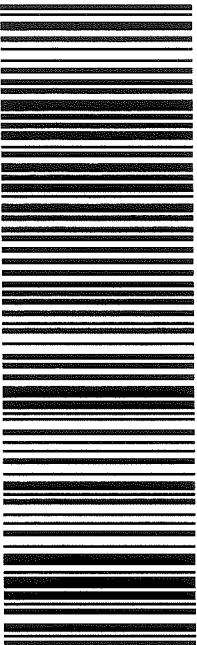
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